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Case Number: NAIH-6474-9/2023

Subject: Decision

D E C I S I O N

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) issues the following decision in the official transparency authority procedure initiated ex officio on June 26, 2023, regarding the presumed non-fulfillment of data provision obligations by the Szerencsi Szakképzési Centrum (registered office/address: 3900 Szerencs, Rákóczi Ferenc út 125.; hereinafter: Client):

It establishes that

the Client has violated Section 37/C (1) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), Section 75/D of the Infotv., and Sections 5 (2)-(3) of Government Decree 499/2022 (VIII. 8.) on the Detailed Rules of the Central Information Public Data Registry (hereinafter: Decree) by failing to fulfill its data provision and publication obligations on the Central Information Public Data Registry interface (hereinafter: Interface) within the deadline, while it subsequently remedied the unlawful situation by providing the data retroactively.

There is no administrative remedy against this decision, but it can be contested in an administrative lawsuit with a petition addressed to the Metropolitan Court within 30 days from the communication of this decision. The petition must be submitted electronically to the Authority, which will forward it to the court along with the case documents. A request for a hearing must be indicated in the petition. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the case is subject to the fee recording right. Legal representation is mandatory in the proceedings before the Metropolitan Court.

The Authority will publish this decision on its website, indicating the Client's identification data.

R E A S O N I N G

I.

Procedure and Clarification of Facts

(1)

The Authority noticed that the Client did not fulfill the data provision obligation on its data sheet dated April 28, 2023, on the Central Information Public Data Registry interface (hereinafter: Interface) as defined in Section 37/C (1) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.) regarding the following contract data:

1 The form for initiating the administrative lawsuit is the NAIH_K01 form: NAIH_K01 form (2019.09.16)
The form can be filled out using the general form filling program (ÁNYK program).

2

- Procurement of TÜSZ, EKR identification number: 000406352023, contract identification: SZ0085643, contracting party: EURO-Profil Rendszerház Kft. as the leading bidder, contract date:

2023.03.29., net value of the contract: 6,562,897 HUF.

(2) The Authority initiated an official transparency authority procedure against the Client on 2023.06.26. based on Section 63/A (1) of the Infotv.

(3) In order to clarify the facts, the Authority, in its decision dated 2023.06.26., called upon the Client to make a statement via the official portal. In its decision NAIH-6474-2/2023, the Authority requested justification from the Client regarding why data provision was not fulfilled concerning the contract mentioned in paragraph (1) of this decision on the Platform, and also asked the Client to declare whether, apart from the data of the contract listed in paragraph (1) of this decision, it processes any data defined in Sections 37/C (2)-(3) of the Infotv. (contracts, grants, payments) that were generated on or after November 29, 2022, until April 28, 2023.

(4) In its response letter registered under NAIH-6474-3/2023 on 2023.07.10., the Client informed the Authority that the contract referred to in paragraph (1) of this decision does not contain a specific contractual framework amount, as it only includes unit prices and mandatory base and optional framework quantities. Point 2.2 of the contract states that the Client is exclusively obligated to the base quantity, and while the Client is entitled to utilize the optional quantity, it is not obligated to do so. The Client also referred to the guidance found in the "Frequently Asked Questions" section of the Platform, which states that if it cannot be determined from the contract (framework agreement) whether its value exceeds 5 million HUF, because it only includes framework quantities (e.g., liters, kW, etc.) or unit prices (e.g., HUF/hour), in these cases, the contract must be included in the subsequent data provision in the Data Sheet only if the payment exceeds 5 million HUF.

(5) According to the Client's statement, no data provision has occurred regarding the service contract established on the basis of a framework agreement for the procurement of TŰSZ with EURO-Profil Rendszerház Kft. on 2023.03.29., because the total amount of financial payments currently does not reach the net threshold of 5,000,000 HUF. The contract will be included in the next data provision if the total amount of financial performances reaches the net 5,000,000 HUF.

(6) The Client further explained that in the public contract repository of the Electronic Public Procurement System (EKR), the contracted net consideration must include the contracted amount, as well as all other optional and reserve amounts. Thus, the total amount of the contract, including options and reserves, is net 6,562,897 HUF.

(7) In its response letter, the Client also stated that, apart from the data of the contract mentioned in paragraph (1) of this decision, it has other contracts that reach 5 million HUF.

(8) The Client entered into a contractor agreement with NEVELŐS OKTATÁS Szolgáltatási és Kereskedelmi Kft. for the implementation of training on March 8, 2023, for a net amount of 14,500,000 HUF, which has not been uploaded to the Platform because, according to the Client's statement, it wishes to indicate it when a payment exceeding 5 million HUF is made under the contract. Currently (up to the date of the statement), 2.9 million HUF has been paid to the partner.

(9) In its decision NAIH-6474-4/2023 dated 2023.07.12., the Authority sent questions regarding the repeated clarification of the facts and requested proof that data provision has occurred concerning the contracts mentioned in paragraphs (1) and (8) of this decision.

3

Regarding the data, in the event of subsequent data provision, it also requested that the Client send it the contract specified in point (8) of this decision.

(10) In its response letter registered on July 21, 2023, under number NAIH-6474-5/2023, the Client informed the Authority that it had fulfilled its data provision obligation regarding the contract specified in point (1) of this decision, and it sent the contract mentioned in paragraph (8) of this decision to the Authority.

(11) The Authority recorded in its note dated July 21, 2023, under number NAIH-6474-6/2023, that the Client fulfilled its data provision obligation on July 19, 2023, regarding the contract specified in

paragraph (1) of this decision on the Platform, and uploaded data for another contract referenced in paragraph (8) of this decision for the examined period on July 10, 2023, but did not make a declaration regarding the fulfillment; however, it sent the questioned contract at the request of the Authority. The Client's data sheets form an annex to the note (downloaded by the Authority from the website <https://kif.gov.hu/> on July 21, 2023).

(12) In its decision dated July 25, 2023, under number NAIH-6474-7/2023, the Authority called upon the Client to familiarize itself with the evidence uncovered during the clarification of the facts and attached to the decision, and to submit further evidence proposals.

(13) In its response registered on August 3, 2023, under number NAIH-6474-8/2023, the Client stated that regarding the contract specified in paragraph (1) of this decision – considering that the contract does not contain a specific amount, only a framework quantity and unit price – it was not clear to it that it was subject to a data provision obligation. When recording in the EKR system, the usage established in the previous year was increased by 30%, thus exceeding the 5 million forint threshold. In reality, the likelihood of actually exceeding the value limit is very low; however, they acknowledged and fulfilled the data provision as stated in the Authority's decision.

(14) The Client also stated that the contract specified in paragraph (8) of this decision was omitted from the data provision due to negligence, but they have also taken steps to remedy this.

II.

Legal provisions applicable to the case

(15) Section 37/C (1) of the Infotv. stipulates that in order to ensure the transparency of public funds utilization, budgetary bodies as defined by the Act on Public Finances – with the exception of national security services – (hereinafter referred to as: those obliged to publish on the platform) shall publish the data specified in subsection (2) on the Central Information Public Data Register platform operated by the authority designated by the Government, accessible to anyone in accordance with the requirements set out in Section 33 (1), in a manner that allows machine readability, bulk downloading, grouping, searchability, summarization, and comparability, on a bi-monthly basis, in a manner accessible for at least ten years following publication, broken down as specified in subsection (3).

(16) According to Section 75/D of the Infotv., the operator of the platform shall create the platform and publish the necessary data sheet for publication on the platform by no later than December 31, 2022. Those obliged to publish on the platform shall continuously publish the data specified in Section 37/C (2) on the platform, but for the first time no later than February 28, 2023.

(17) Section 1 (1) of Government Decree 499/2022 (VIII. 8.) on the detailed rules of the Central Information Public Data Register states that the Government...

4

As the operator of the Central Information Public Data Registry electronic interface, the National Data Asset Agency Limited Liability Company (hereinafter: Operator) is designated.

(18) According to Section 1 (2) of the Regulation, the Operator ensures the design of the Interface and the recording of data services subject to publication obligations on the Interface, as well as their publication, on a web interface operating on an open network.

(19) Section 2 (1) of the Regulation states that in order to fulfill the publication obligation, the Operator prepares a User Policy for the entity obliged to publish on the Interface (hereinafter: Entity obliged to publish on the Interface), which contains, among other things, a guide to assist in filling out the Data Sheet in an understandable form.

(20) Section 4 of the Regulation establishes that the Entity obliged to publish on the Interface is responsible for filling out the Data Sheet in accordance with the provisions of Section 37/C of the Infotv., this regulation, and the User Policy.

(21) Section 5 (2) of the Regulation stipulates that the Entity obliged to publish on the Interface fulfills the data provision by filling out the electronic form found on the SZÜF, attaching the completed Data

Sheet simultaneously, and submitting them to the Operator's official storage.

(22) According to Section 5 (3) of the Regulation, the Entity obliged to publish on the Interface initiates the publication of the completed Data Sheet on the Interface by submitting it to the Operator's official storage.

(23) Section 6 (2) of the Regulation establishes that the Operator ensures the publication of the Data Sheet filled out by the Entity obliged to publish on the Interface.

(24) According to Sections 10 (1)-(2) of the Regulation, the Operator is obliged to create the Interface and publish the data specified in Section 2 on the Interface by no later than December 31, 2022. The data services to be fulfilled for the first time by the Entities obliged to publish on the Interface must be published by the Operator on the Interface by no later than February 28, 2023, contrary to Section 5 (4).

(25) Section 7 (1) of Act CXCV of 2011 on Public Finances (hereinafter: Áht.) establishes that a budgetary organization is a legal entity established to perform a public task defined by law or founding document.

(26) Section 104 (1) of the Áht. stipulates that the treasury maintains a registry of budgetary organizations, public bodies classified by law into the central subsystem of public finances, local governments, national minority self-governments, associations, regional development councils, as well as other legal entities subject to regulations applicable to the management of budgetary organizations (hereinafter collectively referred to as: registered legal entities). The registry is considered a public authoritative record.

(27) According to point f) of Section 38 (3) of the Infotv., the Authority conducts a transparency authority procedure based on a notification and ex officio.

(28) According to Section 63/A (1) of the Infotv., in order to fulfill the publication obligation under the subtitle 24/B of the Infotv., the Authority initiates a transparency authority procedure based on a notification and may initiate a transparency authority procedure ex officio. The general administrative procedure rules set forth in Act CL of 2016 (hereinafter: Ákr.) must be applied in accordance with the provisions of this law.

(29) Section 63/B (1) of the Infotv. stipulates that the administrative deadline in the transparency authority procedure is forty-five days.

(30) According to Section 63/B (2) of the Infotv., in its decision made in the transparency authority procedure, the Authority may establish the fact of the data controller's violation of the publication obligation related to the obligations under subtitle 24/B, including the case where the publication was made with inaccurate data or incompletely, and may order the expedited fulfillment of the publication obligation under subtitle 24/B, including the publication of accurate data and the supplementation of missing data, within a maximum of 15 days.

(31) According to Section 103 (1) of the Ákr., in an authority procedure initiated ex officio, the provisions of the Ákr. regarding procedures initiated upon request shall apply with the deviations set forth in Sections 103 and 104 of the Ákr.

III. The Authority's Decision

(32) In this procedure, the Authority examined whether the Client fulfilled its data provision and publication obligations set forth in Section 37/C (1) of the Infotv. and Sections 5 (2)-(3) of the Regulation, and whether it adhered to the deadline for data provision that was open until April 28, 2023.

(33) The Authority's decision was based on

a) the examination of the data provisions published on the Interface (the Client's data sheet from April 28, 2023, which was incomplete); (the Client's data sheets from July 10, 2023, and July 19, 2023, on which the Client fulfilled its data provision),

b) the examination of contracts related to the Client as a contracting party in the public contract database of EKR,

c) the Client's statements numbered NAIH-6474-3/2023; NAIH-6474-5/2023; NAIH-6474-8/2023.

III.1. Existence of the Data Provision Obligation

(34) The Client is listed as a budgetary organization under registration number 832177 in the registry maintained by the Hungarian State Treasury and is classified as a budgetary organization according to point 1.1 of its founding document numbered II/1071-1/2022/PKF. Therefore, the Authority established that the Client qualifies as a budgetary organization under Section 7 (1) of the Áht.

(35) The data of the contracts specified in paragraphs (1) and (8) of this decision qualify as data defined in point b) of Section 37/C (2) of the Infotv., as they relate to the ordering of services.

6

Data on contracts exceeding a value of five million forints were generated after the entry into force of Section 37/C of the Infotv.

(36) The Client's declaration, the data regarding the net value of the contract recorded in the EKR, as well as the services ordered in Annex 1 of the contract, clearly establish that the Client entered into an agreement on March 29, 2023, under the contract mentioned in paragraph (1) of this decision, which entitles them to a payment of public funds exceeding a net amount of five million forints.

(37) According to the Data Sheet completion guidelines issued for the Interface operated by the National Data Asset Agency (hereinafter: NAVÜ), the starting date of performance for a Contract/Support/Payment must be provided based on the starting date of performance as specified in the underlying document. If the date can be precisely determined, it must be provided with the year, month, and day indicated. In the absence of a starting date for performance, the date of entry into force of the contract shall apply; if that is unknown, then the date of signature shall apply. If multiple signature dates are present on the contract, the latest date shall apply. The date of payment, in the case where data provision occurred during the Support/Payment, must indicate the date of payment made to the other party (including advances) in that column. In the event of multiple payments, all payment dates must be listed in chronological order, numbered accordingly.

(38) The obligation to provide data and publish it on the Interface applies to contracts exceeding a net value of five million forints, in accordance with Section 37/C (2) point b), (3) point b), and (4) of the Infotv.; the legislation does not contain any provision stating that only data related to contracts with monetary transactions must be published on the Interface.

(39) In light of all this, the Authority established that the Client's obligation to provide data and publish it regarding the contracts specified in paragraphs (1) and (8) of this decision exists for the data defined in Section 37/C (3) point b) of the Infotv.

III.2. Failure to Fulfill the Obligation to Provide Data

(40) The Authority found that the Client did not fulfill the data provision obligation regarding the contracts referenced in paragraphs (1) and (8) of this decision, despite the fact that the obligation to provide data and publish it, as established in Section 37/C (1), Section 75/D of the Infotv., and Sections 5 (2)-(3) of the Regulation, was in effect until the deadline for the second publication on the Interface – until April 28, 2023.

(41) Based on all of this, the Authority determined that the Client violated the data provision and publication obligations established in Section 37/C (1) of the Infotv., Section 75/D of the Infotv., and Sections 5 (2)-(3) of the Regulation, and did not adhere to the deadlines for data provision that were open until April 28, 2023.

(42) The Authority established that the Client rectified the unlawful situation on July 10, 2023, and July 19, 2023.

(43) The Authority will publish this decision on its website, indicating the Client's identification data, as the decision contains only public interest data.

7

IV. Legal Consequences

(44) The Authority established that the Client fulfilled its data provision and publication obligations regarding the contract referenced in paragraph (8) of this decision on July 10, 2023, and regarding the contract referenced in paragraph (1) of this decision on July 19, 2023, on the Platform.

(45) Based on all of the above, the Authority did not order the publication obligation under Section 63/B(2)(b) of the Infotv. due to its obsolescence.

V. Procedural Rules

(46) The Authority's jurisdiction is defined by Section 38(2) of the Infotv., and its competence extends to the entire territory of the country.

(47) This decision is based on Sections 80-81 of the Ákr. and Section 63/B(2) of the Infotv. The decision becomes final upon its communication in accordance with Section 82(1) of the Ákr. Pursuant to Section 112 and Section 114(1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

(48) The rules of administrative litigation are defined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a)(aa) of the Kp., the Capital Court is exclusively competent for the litigation. According to Section 27(1)(b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39(6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(49) Section 29(1) of the Kp. and, in this regard, Section 604 of Act CXXX of 2016 on Civil Procedure (hereinafter: Pp.) shall apply, and according to Section 9(1)(b) of Act CCXXII of 2015 on Electronic Administration (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain electronic communication.

(50) The time and place for submitting a statement of claim against the Authority's decision is determined by Section 39(1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77(1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee under Section 59(1) and Section 62(1)(h) of the Itv.

Budapest, August 9, 2023.

Dr. habil. Attila Péterfalvi,
President, Professor Emeritus